

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF SUFFOLK

.....X  
DIANE C. DESOUSA and THOMAS E. DESOUSA,

Index No.: 600371/2021

Plaintiffs, DEFENDANT'S  
VERIFIED ANSWER

-against-

RICHARD A. CALVAGNO II and PATRICK J.  
KARCHER,

Defendants.

.....X

The defendant, PATRICK J. KARCHER (hereinafter referred to as the "Defendant") answering the complaint of DIANE C. DESOUSA and THOMAS E. DESOUSA (hereinafter collectively referred to as the "Plaintiff"), by its attorneys, Warshaw Burstein, LLP, respectfully alleges upon information and belief all of the answers to the allegations contained in the complaint of Plaintiff (hereinafter referred to as the "Complaint") as follows:

1. Denies knowledge or information sufficient to form a belief as to the truth of the allegations contained in paragraph numbers 1, 2, 5, 6, 7, 8, 9, 10, 12, 15, 19, 23, 25, 28, 35, 36, 39 and 42 of the Complaint.

2. Denies the truth of the allegations contained in paragraph numbers 11, 13, 14, 16, 17, 18, 20, 21 and 22 of the Complaint as they relate to the Defendant and denies knowledge or information sufficient to form a belief as to the truth of the allegations as they pertain to defendant RICHARD A. CALVAGNO II.

3. Denies the truth of the allegations contained in paragraph numbers 3, 4, 24, 26, 27, 29, 30, 31, 32, 33, 34, 37, 38, 40, 41, 43, 45, 46, 47, 48, 49, 50, 51, 52, 54, 55, 56, 57, 58, 59, 60, 62, 63, 64, 65, 67, 68, 69, 70 and 71 of the Complaint.

{844799.1 }

4. Concerning paragraphs 44, 53, 61 and 66, Defendant repeats and realleges the responses at fully set forth therein.

**AFFIRMATIVE DEFENSES**

6. Defendant hereby sets forth its separate and distinct affirmative defenses to the claims set forth in the Complaint. By listing any matter as an affirmative defense, Defendant does not assume the burden of proving any matter upon which Plaintiff's bear the burden of proof under applicable law.

**AS AND FOR A FIRST AFFIRMATIVE DEFENSE**

7. The Complaint fails to state a cause of action against Defendant. Defendant does not reside at the subject premises.

**AS AND FOR A SECOND AFFIRMATIVE DEFENSE**

8. Defendants allege, upon information and belief, that whatever injuries and/or damages were sustained by Plaintiff at the time and place alleged in the Complaint were in whole or in part the result of the actions of Plaintiff.

**AS AND FOR A THIRD AFFIRMATIVE DEFENSE**

9. Defendants alleges, upon information and belief, that any damages which may have been sustained by Plaintiff were contributed to in whole or in part by the actions of third parties not under the control of the answering Defendant. Defendant does not reside at the subject premises.

**AS AND FOR A FOURTH AFFIRMATIVE DEFENSE**

10. The action is barred by the doctrine of waiver, estoppel, laches and unclean hands.

**ADDITIONAL AFFIRMATIVE DEFENSES**

11. Defendant hereby gives notice that they intend to rely upon other and further defenses as may become available or apparent during the discovery proceedings in the action and hereby reserve the right to amend its answer to the Complaint and to assert any other defense or claim by appropriate motion.

**WHEREFORE**, Defendants pray that judgment be entered as follows:

- (1) That all claims brought against Defendant, by Plaintiff herein, be dismissed with prejudice; and
- (2) That Defendant be awarded the costs and disbursements of this action, including reasonable attorney's fees, together with such other and further relief as this Court shall deem just and proper.

Dated: New York, New York  
March 4, 2021

Respectfully Submitted,

WARSHAW BURSTEIN, LLP  
*Attorneys for Defendant*

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To:

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VERIFICATION

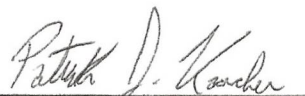
STATE OF NEW YORK }

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ss:

COUNTY OF NEW YORK }

Patrick J. Karcher, being duly sworn, deposes and says I am a principal of the Defendant in this action. I have read the foregoing Verified Answer to the Verified Complaint and know the contents thereof; and same is true to my knowledge except as to the matters therein stated to be alleged upon information and belief and as to those matters, I believe them to be true. The grounds of my belief as to all the matters not stated upon my own knowledge are as follows: the books and records of the Defendant.



PATRICK J. KARCHER

Sworn to before me this  
5<sup>th</sup> day of March, 2021



NOTARY PUBLIC

